

**Justification for Other than Full and Open Competition
On-Site Mobile MRI Services
FCC Hazelton**

Pursuant to the Federal Acquisition Regulation (FAR) 13.106 1(b)(1) in conjunction with (FAR) Subpart 6.302-2(a)(I) and (b)(I) and (2), the Federal Bureau of Prisons (BOP) has determined that the procurement of On-Site Mobile MRI services for the Federal Correctional Complex (FCC HAZELTON) in Bruceton Mills, West Virginia, meets the criteria established for other than full and open competition. This limitation on competition is justified as supported by the following information:

- 1) **AGENCY:**
Department of Justice, Federal Bureau of Prisons
Federal Correctional Complex- HAZELTON
1640 Sky View Drive
Bruceton Mills, WV 26525
- 2) **DESCRIPTION OF ACTION BEING APPROVED:**
This action is for On-Site Mobile MRI services for the inmate population located at FCC Hazelton.
- 3) **DESCRIPTION OF THE SERVICES REQUIRED TO MEET THE AGENCY NEEDS (including the estimated value):**
As part of the mission of FCC Hazelton, medical services are provided to the inmate population. This service is provided under FCC Hazelton's Comprehensive Medical Contract 15B12122D00000001, however, due to lack of staffing, FCC Hazelton is unable to accommodate the volume of medical trips needed to fill this requirement. This has resulted in a backlog of MRI's for the inmate population. The estimated cost for this service to be provided to FCC Hazelton is \$39,600.
- 4) **STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION:**
This justification is being submitted for approval in accordance with 41 U.S.C. 3304(a)(2), as implemented by FAR 6.302-2, "Unusual and Compelling Urgency."
- 5) **DETERMINATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED:**
Our Comprehensive Medical Contract with Seven Corners INC. provides these services under the contract 15B12122D00000001. However, due to lack of staffing and no fault to Seven Corners, FCC Hazelton is unable to staff the needed medical trips to meet the requirements for this. This on-site mobile MRI service would eliminate the medical trips and get Hazelton caught up on MRI backlog. Seven Corners can provide this on-site mobile service, at a price that is fair and reasonable.
- 6) **EFFORTS MADE TO SOLICIT FROM AS MANY POTENTIAL SOURCES AS PRACTICABLE, INCLUDING WHETHER A FEDERAL BUSINESS OPPORTUNITY NOTICE WAS PUBLICIZED:**
Due to these services being provided under our Comprehensive Medical Contract, there was no effort made to solicit from as many potential sources as practicable.
- 7) **CONTRACTING OFFICER DETERMINATION THAT THE COST TO THE GOVERNMENT WILL BE FAIR AND REASONABLE:**
The price is determined to be fair and reasonable based on the fact that when quotes were received for these services in the past.
- 8) **DESCRIPTION OF THE MARKET SURVEY CONDUCTED:**
Based on the urgency and importance of providing the basic medical services to support the operations of FCC Hazelton and that these services are covered under our existing Comprehensive Medical Contract, it was determined that a market survey was not necessary.
- 9) **OTHER FACTS SUPPORTING THE USE OF OTHER THAN FULL AND OPEN COMPETITION:**

As part of the overall mission, FCC Hazelton is to provide basic and emergency health care. Therefore, it was in the best interest of the Government to procure these services utilizing our current Comprehensive Medical vendor. They offer this service under the Comp Medical contract but due to lack of staffing and at no fault of Seven Corners, FCC Hazelton is unable to staff the medical trips needed to get caught up on the backlog of trips. To get caught up on that backlog, Seven Corners is setting up an on-site MRI mobile service to get this back log caught up, at a fair and reasonable price for the government, that requires less manpower to get the job done.

10) **LIST OF SOURCES EXPRESSING IN WRITING, INTEREST IN THE ACQUISITION:**

Due to having a contract in place with Seven Corners that covers this service, no other sources were sought for this acquisition.

11) **ACTIONS TAKEN BY THE AGENCY TO REMOVE OR OVERCOME ANY BARRIERS TO COMPETITION:**

Future acquisitions will be competed when practical or as long as there is no current contract in place that provides these services.

12) **CERTIFICATION AND APPROVALS:**

I certify that the request for approval of this justification for other than full and open competition is made in good faith. The supporting data and information is accurate and complete to the best of my knowledge, and I would not be making this request if it would have been feasible to fully complete these requirements according to the Federal Acquisition Regulation. I further certify that this request is not the result of a lack of advance procurement planning.

Andrea Burke, Contract Specialist